

Court No. - 21

Case :- WRIT - C No. - 10207 of 2023

Petitioner :- Radhika Rai

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Sanjai Kumar Rai, Shivendra Nath Singh

Counsel for Respondent :- C.S.C., Rishu Mishra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

The petitioner has challenged the recovery citation dated 26.08.2022 issued by respondent no.3 for recovery of electricity dues in a case of theft of electricity.

Ms. Rishu Mishra, learned counsel for the respondent-Electricity Department on instructions states that the impugned recovery has been withdrawn and that petitioner will be given a fresh opportunity of hearing before passing any order.

Accordingly, the petition is **disposed of** with liberty to the respondent-Electricity Department to pass fresh order strictly in accordance with procedure prescribed under the U.P. Electricity Supply Code, 2005.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 28.3.2023

Shivangi